



POLICE DEPARTMENT

November 19, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202305031 (Incident Date: May 23, 2023) regarding Sergeant Ramon Cepeda, Tax No. 954623 (DADS No. 2024-31905)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202305031, pertaining to Sergeant Ramon Cepeda. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Cepeda would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant Cepeda deployed his Conducted Electrical Weapon (CEW) on two occasions, approximately eight (8) seconds apart, in an attempt to gain compliance from an individual being arrested for transit fare evasion. Despite numerous warnings to comply, the individual continued to actively resist by bracing and tensing her arms/hands and moving her body in an attempt to prevent being handcuffed. Body Worn Camera footage captures the active resistance, along with Sergeant Cepeda's numerous warnings to the individual that he would use his CEW if she continued. It should be noted that during the CCRB interview, the individual admitted that she resisted being handcuffed because she did not believe that she needed to be arrested and that Sergeant Cepeda warned her prior to using the CEW. Based on the actions of the individual, both deployments of the CEW were appropriate in this situation.

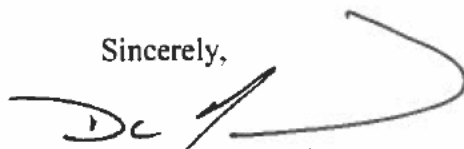
A thorough investigation was also completed by the Transit Bureau Investigations Unit and a determination was made that the use of force in this case was within guidelines. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction

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over this matter, intends to impose no disciplinary action against Sergeant Cepeda for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



November 27, 2024

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202305031 (Incident Date: May 23, 2023) regarding Sergeant Ramon Cepeda, Tax No. 954623 (DADS No. 2024-31905)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 19, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent not to pursue Charges and Specifications against Sergeant Ramon Cepeda for his unlawful use of force when he deployed his Conducted Electrical Weapon (“CEW”) a second time without police necessity, against § 87(2)(b) the complainant in the herein matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after analyzing the facts and circumstances of this matter, you determined that Sergeant Cepeda properly deployed his CEW on two occasions, approximately eight (8) seconds apart, in an attempt to gain compliance from § 87(2)(b) who was being arrested for transit fare evasion. CCRB disagrees with your determination.

§ 87(2)(b) was not actively resisting when Sergeant Cepeda deployed his taser the second time. Sergeant Cepeda stated that § 87(2)(b) dropped to her knees like “dead weight” and held her arms in front of her to resist being handcuffed, and thus, he triggered a second electrical cycle. However, body worn camera (“BWC”) footage established that after Sergeant Cepeda tased § 87(2)(b) the first time, her body slumped downward and was visibly immobile with her knees on the ground and chest against the transit booth and her left wrist was already handcuffed. Per BWC footage and Sergeant Cepeda’s description of § 87(2)(b) after the first taser deployment, her physical actions were largely akin to her going “limp,” and thus considered passive resistance, as described in Patrol Guide Procedure 221-08. Per the same procedure, taser use for passive resistance is “strictly prohibited.” Taser use is allowed only if the subject is actively resisting or is actively aggressive when being placed into custody. Because § 87(2)(b) actions prior to Sergeant Cepeda’s second use of his taser was equal to passive resistance, Sergeant Cepeda was not authorized to trigger a second use of his CEW against § 87(2)(b).

Based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sergeant Cepeda in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor
for Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



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Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
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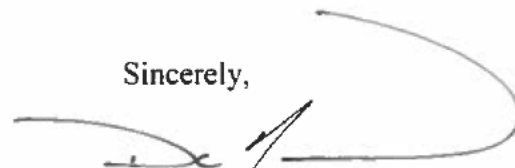
Re: CCRB Case No. 202305031 (Incident Date: May 23, 2023) regarding Sergeant Ramon Cepeda, Tax No. 954623 (DADS No. 2024-31905)

Dear Mr. Darche:

The Police Department has reviewed your letter, dated November 27, 2024, regarding the CCRB case involving Sergeant Ramon Cepeda and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Cepeda for the reasons expressed in my November 19, 2024 letter.

To accommodate the Statute of Limitations and as per the direction of the Interim Police Commissioner Donlon in the November 19, 2024 letter, Sergeant Cepeda received no disciplinary action for the allegation of unlawful use of force.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office